

SENATE BILL 1938

By Jackson

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 39, relative to lifetime orders of
protection.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-113(g), is amended by deleting "A violation of subsection (a)" and substituting "Except as provided in subdivision (g)(2), a violation of subsection (a)".

SECTION 2. Tennessee Code Annotated, Section 39-13-113(g), is amended by designating the current language as subdivision (g)(1) and adding the following subdivision (g)(2):

(2)

(A) A violation of subsection (a) is a Class E felony if:

(i) The offender knowingly violated a lifetime order of protection issued pursuant to § 36-3-627; and

(ii) The conviction on which the lifetime order of protection is based was for an offense involving the use of force against a victim.

(B) Any sentence of incarceration imposed must be served consecutively to the sentence for any other offense that is based in whole or in part on the same factual allegations. However, the sentencing judge may specifically order the sentences for offenses arising out of the same facts to be served concurrently.

SECTION 3. Tennessee Code Annotated, Section 36-3-627(a)(1), is amended by adding the following new subdivision:

(D) A felony offense committed in another state that would constitute an offense listed in this subdivision (a)(1) if committed in this state. If an offense in a jurisdiction other than this state is not identified as one (1) of the offenses listed in this subdivision (a)(1), then it must be considered an offense listed in this subdivision (a)(1) if the elements of the offense are the same as the elements of the comparable offense in this state.

SECTION 4. Sections 1 and 2 of this act take effect July 1, 2026, the public welfare requiring it, and apply to acts committed on or after that date. Section 3 takes effect upon becoming a law, the public welfare requiring it.